

Not Reported in Fed. Supp.
United States District Court, M.D. Florida, Ocala Division

DOE ON BEHALF OF DOE

v.

GRINDR, LLC

Case No. 5:23-cv-193-JA-PRL

Decided October 26, 2023

Opinion of the court

Attorneys and Law Firms Krisel McSweeney, McSweeney Law Firm, Boca Raton, FL, for Plaintiff. Ambika Kumar, Pro Hac Vice, Sara Anne Fairchild, Davis Wright Tremaine LLP, Seattle, WA, Lawrence G. Walters, Walters Law Group, Longwood, FL, for Defendants

On or about October 2, 2022, John, who was then 13 years old, and Edward Pritt, an adult male, used the Grindr app to arrange a time to meet. (Doc. 28 ¶ 28). At 5:00 a.m. on October 2, 2022, Pritt drove to John's home using Grindr's geolocation features, and he and John engaged in sexual activity in Pritt's car. (Id. ¶ 29). A resident was alerted to suspicious activity outside of her home and called the police, who arrested Pritt. (Id. ¶ 30). Plaintiff, Jane Doe, brings this suit on behalf of her minor son, John.⁴ Plaintiff alleges negligence and intentional infliction of emotional distress (IIED) under Florida common law against Grindr, LLC and Grindr Holdings, LLC.⁵ Defendants move to dismiss on three grounds: (1) Section 230 of the Communications Decency Act, 47 U.S.C. § 230(c) (1), provides immunity to Plaintiff's claims; (2) the First Amendment bars Plaintiff's claims; and (3) Plaintiff fails to state a claim for negligence and IIED under Florida common law. Because the first basis is dispositive, the Court does not reach the others

II. DISCUSSION

ORDER JOHN ANTOON II, United States District Judge Before the Court is the Motion to Dismiss (Doc. 35) filed by Defendants Grindr, LLC, and Grindr Holdings, LLC.¹ Upon consideration of the parties' arguments, and for the reasons that follow, the Court will grant the motion and dismiss this action

I. BACKGROUND² Grindr is a website and smartphone application (app) that facilitates sex between its users. (Second Am. Compl., Doc. 28, ¶ 11). Grindr is an "adults only" app and requires users to enter their birthdate before they are permitted to create an account. (Id. ¶ 12). Nonetheless, when John Doe (John)

providing a false birthdate.³ (Id. ¶ 17)

A. Section 230 Section 230 of the Communications Decency Act (CDA) states that "[n]o provider or user of an interactive computer service shall be treated as the publisher or speaker of any information provided by another information content provider." 47 U.S.C. § 230(c)(1). "The majority of federal circuits have interpreted the CDA to establish broad 'federal immunity to any cause of action⁶ that would make service providers liable for information originating with a third-party user of the service.' " Almeida v. Amazon.com, Inc., 456 F.3d 1316, 1321 (11th Cir. 2006) (quoting Zeran v. Am. Online, Inc., 129 F.3d

327, 330 (4th Cir. 1997)). Defendants assert entitlement to this immunity here. There are three elements to a claim of immunity under Section 230(c) of the CDA. “The defendant must show that: (1) [it] is a provider ... of an interactive computer service, (2) the claim is based on information provided by another information

content provider and (3) the claim would treat the defendant as the publisher or speaker of that information.’ ” *Herrick v. Grindr, LLC*, 306 F. Supp. 3d 579, 588 (S.D.N.Y. 2018), (alterations in original) (internal quotation marks omitted) (quoting *FTC v. LeadClick Media, LLC*, 838 F.3d 158, 173 (2d Cir. 2016)). First, as Plaintiff concedes, Grindr is an interactive computer service (ICS) (Doc. 42 at 5). An ICS is defined as “any information service, system, or access software provider that provides or enables computer access by multiple users to a computer server.” 47 U.S.C. § 230(f)(2). Grindr is an ICS because it “gives subscribers access to a common server for purposes of social networking.” *Saponaro v. Grindr, LLC*, 93 F. Supp. 3d 319, 323 (D.N.J. 2015). Second, the claim is based on information provided by another information content provider. The CDA defines “information content provider” as “any person or entity that is responsible, in whole or in part, for the creation or development of information provided through the Internet or any other interactive computer service.” 47 U.S.C. § 230(f) (3). Plaintiff claims that this case is solely about a failure to implement basic safety measures to protect minors, as was the case in *Doe v. MySpace, Inc.*, 474 F. Supp. 2d 843 (W.D. Tex. 2007), *aff’d*, 528 F.3d 413 (5th Cir. 2008). But this “artful pleading” is equally disingenuous here. *Id.* at 849. The foundation of Plaintiff’s claim is that through communications on the Grindr platform, Pritt and John met and exchanged personal information that led to an in-person meeting and the sexual assault of John. If Defendants had not allowed John access to the app and published his communication with Pritt, the two would not have met and the sexual assault would not have occurred. “Merely providing the forum where harmful conduct took place cannot ... serve to impose liability onto [a provider].” *M.H. v. Omegle.com, LLC*, Case No. 8:21-cv-814VMC-TGW, 2022 WL 93575, at (M.D. Fla. Jan. 10, 2022) (citing *Klayman v. Zuckerberg*, 753 F.3d 1354, 1358 (D.C. Cir. 2014)). Third, the claims treat Defendants as a publisher of information. As mentioned above, Plaintiff’s claim is “inextricably linked” to Defendants’ publication of Pritt’s messages to John. See *Herrick v. Grindr*, 765 F. App’x 586, 591 (2d Cir. 2019) (Section 230 barred claim that

Grindr failed to warn that its platform could be used to impersonate and harass others); *In re Facebook, Inc.*, 625 S.W.3d 80, 94 (Tex. 2021) (Section 230 barred failure-to-warn claim because warning “would only be necessary because of Facebook’s allegedly inadequate policing of thirdparty content transmitted via its platforms”). Defendants published the messages between the minor and Pritt, which constitute the underlying basis for Plaintiff’s claims. See *Doe v. MySpace*, 528 F.3d at 419–20. A provider can lose its Section 230 immunity if it “materially contributes” to the unlawfulness of the content at issue. See, e.g. *Fair Hous. Council v. Roommates.com, LLC*, 521 F.3d 1157, 1163 (9th Cir. 2008) (finding that an immunity exception applied to a roommate-finding website that required visitors to disclose discriminatory housing preferences). Although Plaintiff argues against immunity on this basis, this argument fails. “Material contribution” requires that the provider contributed “to the alleged illegality” of content, or in other words, “what makes the displayed content illegal or actionable.” See *Jones v. Dirty World Ent. Recordings LLC*, 755 F.3d 398, 409–15 (6th Cir. 2014). Plaintiff argues that Defendants materially contributed to the unlawfulness of the content at issue by “maintain[ing] a weak age verification system, misrepresenting that minors may not sign up, and failing to warn of the known risk of sexual abuse to minors.” (Doc. 42 at 3). Defendants, Plaintiff argues, are therefore “responsible for what [made] the displayed content allegedly unlawful.” (*Id.* at 16 (alteration in original) (quoting *Doe v. MG Freesites*,

Ltd., Case No. 7:21-cv-00220-LSC, 2022 U.S. Dist. LEXIS 23199, at , 2022 WL 407147 (N.D. Ala. 2022))). But Plaintiff does not allege facts showing that Defendants contributed to the illegality of Pritt's messages. See *Nemet Chevrolet, Ltd. v. ConsumerAffairs.com, Inc.*, 591 F.3d 250, 256–58 (4th Cir. 2009) (motion to dismiss granted where complaint failed to “plead facts to show” defendant “create[d]” or “develop[ed]” content). “The purpose of § 230 statutory immunity is to ‘maintain the robust nature of Internet communication’ and to avoid the ‘obvious chilling effect’ that would result from the specter of tort liability on service providers for millions of postings by third parties.” *McCall v. Zotos*, Case No. 8:21-cv-02411SDM-TGW, 2023 WL 3946827, at (11th Cir. June 12, 2023) (quoting *Zeran* at 330,). Here, Defendants meet the

three elements required for immunity under Section 230 of the CDA.⁷ Plaintiff's claims are thus barred. B. Leave to Amend Plaintiff has already amended her initial complaint twice, and she does not request leave to amend again. Because it appears that future amendment would be futile, see *Burger King Corp. v. Weaver*, 169 F.3d 1310, 1320 (11th Cir. 1999), Plaintiff's claims will be dismissed with prejudice and without leave to amend. C. CONCLUSION Accordingly, it is ORDERED as follows:

1. The Motion to Dismiss (Doc. 35) is GRANTED. 2. The Second Amended Complaint (Doc. 28) is DISMISSED with prejudice. 3. This case is dismissed, and the Clerk is directed to close it. DONE and ORDERED on October 26, 2023